

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 12, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Tom Segrave and Jeff White. Absent: Ken Esquibel and Scott Roybal. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Johnson declared a conflict of interest and vacated council chambers. Mr. Segrave moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present in council chambers.

[CA] Minutes from Regular Meeting of the Governing Body on May 22, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a retail liquor license application filed with the City Clerk’s Office for Cheyenne Regional Airport Board d/b/a Cloud Nine Restaurant & Bar, 300 East 8th Ave., Cheyenne, WY. Public comment was made by: Tim Bradshaw, Director of Aviation, Cheyenne Regional Airport. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Johnson, Mr. Laybourn, Mr. Segrave and Mr. White. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 2.06 acres of land located northwest of the intersection of Thomas Road and Ridge Road, Laramie County, Wyoming. There being no comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 1.69 acres of land located at 4512 Rawlins Street, Laramie County, Wyoming (located south of Rawlins Street east of Cleveland Ave.). There being no comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing for proposed Fiscal Year 2024 budgets for the City of Cheyenne and Board of Public Utilities. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Ordinance appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2023 and ending June 30, 2024. Reporting for Committee of the Whole, Mr. Johnson moved to approve on third and final reading, seconded by Dr. Aldrich. Mr. Johnson moved to amend to decrease the Miscellaneous Department “Transfer to Reserves” line item by \$5,000 and increase the Professional Development line item in the City Council Department by the same amount, seconded by Dr. Rinne. Motion to amend carried. Voting “yes” – all members of the governing body present. Mr. Johnson moved to amend to decrease the Miscellaneous Department “Transfer to Reserves” line item by \$75,618.00 and increase various payroll expenditure line items in the Community Recreation and Events Department, Botanic Gardens Division, by the same amount, and to decrease the Specific Purpose Option Tax Fund Botanic Gardens Operations and Maintenance account payroll line items by \$75,618.00 and decrease the Specific Purpose Option Tax revenue by the same amount, seconded by Dr. Rinne. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. The following is a summary of the proposed budget including aforementioned amendments: General Fund, \$66,215,278; Weed and Pest, \$710,000; Youth Alternatives Grants, \$930,480; Recreation Programs, \$2,099,698; Surface Water Management, \$6,028,882; Community Development Block Grant, \$548,667; Law Enforcement Grants, \$211,976; Miscellaneous Federal Grants, \$929,612; Transportation Planning, \$1,078,409; Transit, \$3,560,683; Juvenile Justice, \$170,745; Special Friends, \$58,325; Development Impact Fees, \$1,028,200; One Percent Sales Tax, \$13,089,895; Specific Purpose Option Tax, \$498,837; Youth Alternatives Projects, \$19,207; Golf Facilities, \$374,300; Fleet Maintenance, \$6,389,579; Solid Waste Management, \$19,985,856; Civic Center, \$2,613,314; Ice & Events Center, \$1,057,783; Perpetual Care, \$27,000; Total City, \$127,626,727; Water Enterprise, \$28,772,400; Sewer Enterprise, \$15,372,000; Total Appropriation, \$171,771,127. Comments were made by the following members of the governing body: Mayor Collins and Mr. Laybourn. (#4504)

ORDINANCE – 3rd READING – Ordinance approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Laybourn and Dr. Rinne. (#4505)

ORDINANCE –3rd READING – Ordinance amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to MUB Mixed-Use Business Emphasis for land located at Lot 29, Block 1, Eastridge. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. (#4506)

ORDINANCE – 3rd READING – Amending the Major Street Plan Official Map 2017, by updating the entire Major Street Plan Official Map with newly platted and built roads and with the most recent Master Transportation Plan (Connect 2045) and other recently adopted Master Transportation Amendments. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Comment was made by the following member of the governing body: Mr. Segrave. (#4507)

ORDINANCE –2nd READING – Amending Section 5.12.030, Licenses and Permits-Types, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. White moved to approve on second reading, seconded by Mr. Segrave. Mr. White moved to amend by substitute dated May 26, 2023, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”.

ORDINANCE –2nd READING – Creating Chapter 2.96, Ethical Obligations of Public Officials, Public Members and City Employees, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, specifying the ethical duties and obligations of Public Officials, Public Members and Employees of the City of Cheyenne. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Dr. Aldrich moved to postpone to June 26, 2023, seconded by Mr. Laybourn. Motion to postpone carried. Voting “yes” – all members of the governing body present with the exception of Dr. Rinne voting “no”. Public comment was made by: Seth Lloyd, Cheyenne Public Employees Association. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn and Dr. Rinne.

ORDINANCE –1st READING – Amending Chapter 15.20, National Electrical Code Adopted-Appendix K, International Building Code-Administrative Provisions Adopted, of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming, updating the Incorporated National Electrical Code Provisions as specified – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located northwest of and adjacent to the intersection of Thomas Road and Ridge Road – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR Medium-Density Residential for land being annexed to the City of Cheyenne located northwest of and adjacent to the intersection of Thomas Road and Ridge Road – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located south of and adjacent to Rawlins Street, east of Cleveland Avenue – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR Medium-Density Residential for land being annexed to the City of Cheyenne located south of and adjacent to Rawlins Street, east of Cleveland Avenue – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural for land being annexed to the City of Cheyenne located southwest of and adjacent to the intersection of Holland Court and Ridge Road – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI Light Industrial and MR Medium-Density Residential to MR Medium-Density Residential for land located on Lots 14 and 15, Christensen Park – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending Section 2.4.2 Annexations of the Unified Development Code, and creating Section 2.2.8, Assigned Zoning, clarifying City zone assignment processes in concert with annexations and when removing City zone districts – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending Section 2.2.1.c.5 and 2.2.2.c.6 of the Unified Development Code (UDC), amending protest petitions for zoning map amendments and planned developments – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2023 and ending June 30, 2024. Motion (per Consent Agenda) carried. (#6330)

RESOLUTION – Approving water services, by outside user agreement, for properties to be known as Ironhorse 3rd Filing, Laramie County, Wyoming generally located southeast of West Riding Club Road and Hynds Boulevard. Mr. Cook moved to adopt, seconded by Dr. Rinne. Mr. Cook moved to postpone to June 26, 2023, seconded by Mr. White. Motion to postpone carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson and Mr. Segrave voting “no”. Public comment was made by: Matt Kaufman, representing Ironhorse Capital. Comments were made by the following members of the governing body: Mayor Collins, Mr. Johnson and Mr. Segrave.

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming State Loan and Investment Board to amend the amount received from the Drinking Water State Revolving Loan #229 from \$3,960,000 to \$4,785,000 for the North City Zone Improvements Project and authorizing the Mayor, the City Clerk and the Director of the Board of Public Utilities to execute the application and all related documents – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the City of Cheyenne Board of Public Utilities to discharge uncollectible debts in the amount of \$79,185.43 pursuant to Wyo. Stat. § 16-4-502 – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the lawful possession of open containers of alcoholic liquor within the Downtown Development District Boundaries for rectifiers and distillers for seven specified dates in 2023 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] Pipeline Easement Agreement between the City of Cheyenne and Samson Exploration, LLC for installation and maintenance of pipelines on City owned property (Revenue to the City) (Postponed from May 22, 2023). Motion (per Consent Agenda) carried. (#7768)

[CA] Professional Services Agreement between the City of Cheyenne and Terracon Consultants, Inc. for Landfill Leachate System Design, Modification and Maintenance Contract (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$61,400.00). (#7769)

[CA] Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS) for the period of July 1, 2023 to June 30, 2024 (General Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Sunrise Engineering for the 7th Street Drainage and Access Improvements Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Wyoming Department of Transportation for the City's Childs Draw South Tributary Enhancements Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for setting terms and conditions for participating in Federal Project No. B231031, Surface Transportation Urban Program (US 30, Dell Range Boulevard, and Whitney Road) (2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Laramie County, and Cheyenne Animal Shelter for Animal Shelter Services (General Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Laramie County for Animal Control Services (Revenue to City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Davis & Cannon, LLP for representation in certain real property litigation related matters (General Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and DHM Design Corporation for the Reed Avenue Rail Corridor Design Project (2017 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Preliminary Engineering Services Agreement between the City of Cheyenne and BNSF Railway Company for BNSF Contract Number BF-20246698, for Project Review and Diagnostic Evaluation/Quiet Zone Project (2017 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for the School Resource Officers Program (SRO) (Revenue to City) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7531 between the City of Cheyenne and Waste Management of Colorado, Inc. for the Recycling Services Project to extend the agreement to April 15, 2024 (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$200,000.00). (#7531)

[CA] Renewal of Contract #7535 between the City of Cheyenne and Blue Cross Blue Shield of Wyoming for Third Party Administrator Services and Group Health Insurance benefits for City employees (Self Insurance Fund). Motion (per Consent Agenda) carried. (#7535)

[CA] Renewal of Contract #7536 between the City of Cheyenne and Granular Insurance Company for Stop Loss Insurance for City employees (Self Insurance Fund). Motion (per Consent Agenda) carried. (#7536)

[CA] Contract Modification #1 to Contract #7538 between the City of Cheyenne and TFM-22 LLC d/b/a Top-Flight Maintenance Inc. for Janitorial Services for the Municipal Building (General Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7539 between the City of Cheyenne and TFM-22 LLC d/b/a Top-Flight Maintenance Inc. for Janitorial Services for the Municipal Court Building (General Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7540 between the City of Cheyenne and TFM-22 LLC d/b/a Top-Flight Maintenance Inc. for Janitorial Services for the Cheyenne Public Safety Center (General Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7541 between the City of Cheyenne and TFM-22 LLC d/b/a Top-Flight Maintenance Inc. for Janitorial Services for the Youth Alternatives & Special Friends Building (General Fund & Youth Alternatives Projects Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-13-23 for an Agreement between the City of Cheyenne and Z & Z Sealcoating, Inc. for the 2023 Crack Seal #1 Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$448,265.26). (#7770)

[CA] Consideration of Bid #E-19-23 for one (1) palletized paint striper unit for the City of Cheyenne Traffic Division (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid from Vogel Traffic Services, Inc. d/b/a EZ Liner, Orange City, IA, in an amount not to exceed \$75,945.00).

[CA] Consideration of Bid #E-24-23 for four (4) new trucks for the City of Cheyenne Landfill, Aquatics, and Facilities Divisions (2019-2022 Optional 1% Sales Tax Fund, Solid Waste Fund, Insurance Claims and General Fund). Motion (per Consent Agenda) carried (accepted bid from Ken Garff Cheyenne in an amount not to exceed \$300,562.80).

[CA] Consideration to Purchase between the City of Cheyenne and Xerographic Equipment Systems, Inc. (XESI) to cancel existing copier leases and to purchase eighteen (18) new copiers (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$202,990.96).

[CA] Consideration to Purchase between the City of Cheyenne and LN Curtis for the purchase of seventy-two (72) sets of bunker gear for the Cheyenne Fire Rescue Department (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-21-23 for one (1) new emergency medical vehicle for the City of Cheyenne, Cheyenne Fire Rescue Department. (2019-2022 Optional 1% Sales Tax Fund, 2021 Specific Purpose Option Tax Fund and Wyoming Office of Homeland Security, Assistance to Firefighters Grant) – referred to Finance Committee.

[CA] Consideration of Bid #S-6-23 for an Agreement between the City of Cheyenne and Reiman Corp. for the Pumphouse Wetlands Dredging Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-22-23 for an agreement between the City of Cheyenne and Ameri-Tech HVAC Services, Inc., for the HVAC and Mechanical Systems Maintenance Project (2019-2022 Optional 1% Sales Tax Fund, 2012 Specific Purpose Option Tax Fund, Civic Center Fund, Fleet Maintenance Fund, General Fund, Solid Waste Fund and the Ice and Events Center Fund) – referred to Finance Committee.

Request to extend the time period in which Westby Edge LLC has to become operational for an additional year for their bar and grill and microbrewery licenses, located at 714 W. 20th St., Cheyenne, WY. Mr. White moved to approve the extension of the microbrewery license, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson and Mr. White.

[CA] Request to amend a previously approved outdoor seating area for consumption relating to the City of Cheyenne Bar & Grill Liquor License held by Paris West Restaurant and Bar, located at 1719 Central Avenue, Cheyenne, Wyoming – referred to Finance Committee.

There were no comments made on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held June 26, 2023 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for the City of Cheyenne’s Amended Program Year 2020 Consolidated Plan prepared by the Cheyenne Housing and Community Development Office.

Announcement was made of a Public Hearing to be held June 26, 2023 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a bar and grill liquor license application filed with the City Clerk’s Office for Wyoming Downs OTB14, LLC d/b/a Wyoming Downs OTB14, LLC, 1345 Dell Range Blvd., Cheyenne, WY.

Announcement was made that due to the Juneteenth holiday on Monday, June 19, 2023, regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet at Noon on Tuesday, June 20, 2023 and Public Services Committee will meet at Noon on Wednesday, June 21, 2023. Both meetings will be held at 2101 O’Neil Avenue, Room 104 and via electronic conference meeting.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Johnson and Mr. Laybourn.

Mr. Johnson moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(vii), seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: City Attorney, City Clerk, City Engineer, Chief of Cheyenne Fire Rescue, City Treasurer and Kipp Sanders, Cheyenne Fire Rescue. (Clerk’s Note: executive session convened at 7:16 p.m.)

There being no further business to come before the governing body, the meeting was officially adjourned at 7:44 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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